

GINSBURG, J., dissenting

in Mexico, and to [*amici's*] knowledge has itself prosecuted only one agent in a cross-border shooting.” Brief for Former Officials of U. S. Customs and Border Protection Agency as *Amici Curiae* 4. These *amici* warn that, “[w]ithout the possibility of civil liability, the unlikely prospect of discipline or criminal prosecution will not provide a meaningful deterrent to abuse at the border.” *Ibid.* In short, it is all too apparent that to redress injuries like the one suffered here, it is *Bivens* or nothing.

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I resist the conclusion that “nothing” is the answer required in this case. I would reverse the Fifth Circuit’s judgment and hold that plaintiffs can sue Mesa in federal court for violating their son’s Fourth and Fifth Amendment rights.